CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

Application no. 2733/05
by Akif ALIZADE
against Azerbaijan

The European Court of Human Rights (First Section), sitting on 20 September 2007 as a Chamber composed of:

Mr C.L. ROZAKIS, *President*,
Mr A. KOVLER,
Mrs E. STEINER,
Mr K. HAJIYEV,
Mr D. SPIELMANN,
Mr S.E. JEBENS,
Mr G. MALINVERNI, *judges*,
and Mr A. WAMPACH, *Deputy Section Registrar*,

Having regard to the above application lodged on 6 December 2004,

Having regard to the decision to apply Article 29 § 3 of the Convention and examine the admissibility and merits of the case together.

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Akif Alizade, is an Azerbaijani national who was born in 1965 and lives in Baku. He was represented before the Court by Ms S. Aliyeva, a lawyer practising in Baku.

The facts of the case, as submitted by the parties, may be summarised as follows.

The applicant was one of the founders of a public association named "Lawyers' Committee on Human Rights" (*"İnsan Hüquqları Üzrə Hüquqşünaslar Komitəsi" İctimai Birliyi*). The association was founded on 25 December 2002.

On 24 January 2003 the founders filed an application for the association's state registration with the Ministry of Justice ("the Ministry"), the government authority responsible for the state registration of legal entities. In accordance with the domestic law, a non-governmental organisation acquired the status of a legal entity only upon its state registration by the Ministry.

Although the law required the Ministry to reply to the founders within a ten-day period from the submission of the registration documents, they did not receive any reply from the Ministry for more than four months.

On 29 May 2003 the applicant, together with four other founders, filed a lawsuit against the Ministry, complaining of the latter's failure to reply to their registration request in a timely manner.

While the case was still pending before the Yasamal District Court, on 15 August 2003 the Ministry returned the registration documents to the founders "without taking any action", i.e. without issuing a state registration certificate or an official refusal to register the association. In the cover letter, the Ministry noted that, contrary to the requirements of Article 13.1 of the Law on Non-Governmental Organisations, the association's charter did not specify the terms and conditions for terminating the membership in the association.

On 1 September 2003 the Yasamal District Court dismissed the founders' claim. The court found that the Ministry had in fact replied to the founders by the letter of 15 August 2003 and provided a valid reason for refusal to register their association. The court further held that the association's charter had not been drafted in accordance with the requirements of the domestic law and that the founders had a right to re-submit their state registration request after re-drafting the charter.

On 12 December 2003 the Court of Appeal upheld the first instance court's judgment. On 2 June 2004 the Supreme Court upheld the lower courts' judgments. The full text of this final decision was sent to the founders on 26 June 2004.

In the meantime, the founders re-drafted the association's charter according to the Ministry's comments and on 3 November 2003 re-submitted their registration request. This time, although the founders expected to receive a response from the Ministry within the statutorily required five-day period after the re-submission of the registration documents, they did not receive anything from the Ministry for more than three months. On 18 February 2004 the Ministry again returned the registration documents to the founders, stating that the association's charter did not specify the territorial limits of the association's activity.

Meanwhile, in January 2004 a new Law on State Registration and State Register of Legal Entities had entered into force. This law provided for a longer, 40-day statutory period for examination of state registration requests

by the Ministry of Justice. In exceptional circumstances this period could be extended for additional 30 days.

On 11 March 2004 the founders re-submitted their state registration request under the new registration procedure. On 3 May 2004 the Ministry informed the founders that the period for examination of their registration request had been extended for 30 more days. On 11 June 2004 the Ministry again returned the registration documents, noting *inter alia* that the association's charter did not contain any provisions concerning the association's fiscal year.

On 30 June 2006, in reply to another registration request by the association's founders, the Ministry of Justice registered the association and issued a state registration certificate.

COMPLAINTS

1. The applicant complained under Article 11 of the Convention that the failure by the Ministry of Justice to register the association in a timely manner constituted an interference with his freedom of association.

2. The applicant also complained under Article 6 of the Convention that the domestic courts had not been independent and impartial and that they had erred in assessing the facts of the case and misapplied the domestic law. He also alleged that the Court of Appeal and the Supreme Court had held their hearings in the absence of the association's founders, and that no summonses to attend those hearings had been sent to them.

THE LAW

On 2 August 2006 the applicant informed the Court of his wish to withdraw the application due to the fact that the association had been registered by the Ministry of Justice.

In these circumstances, the Court finds that the applicant no longer intends to pursue his application before the Court within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, the Court finds no reasons of a general character, as defined in Article 37 § 1 *in fine*, which would require the examination of the application by virtue of that Article.

In view of the above, it is appropriate to discontinue the application of Article 29 § 3 of the Convention and to strike the application out of the list of cases.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

André WAMPACH
Deputy Registrar

Christos ROZAKIS
President